

IN THE PROCURMENT REVIEW COMMITTEE
BALUCHISTAN PUBLIC PROCUREMENT REGULATORY AUTHORITY

PRC Appeal No. 09/2025

M/S Al-Watan Associates (Pvt) Ltd.
Through its Representative,
Zulfiqar Ali S/o Hafiz Ullah

....Appellant

Versus

- 1. Government of Balochistan, Through its Secretary, Local Government & Rural Development Department, Quetta.***
- 2. Assistant Director, Local Government & Rural Development Department, Quetta.***
- 3. Chairman, Complaint Redressal Committee.***
- 4. M/S Malik Abdul Ghaffar & Brothers.***

....Respondents

Quorum

- 1. Habib Ur Rehman JamotChairman PRC**
- 2. Mubashir Ali Khan (FCIPS).....Member PRC**
- 3. Engr. Junaid Shah.....Member PRC**
- 4. Engr. Muhammad Ayoub Nasir.....Technical Member PRC**
- 5. Abdul Wahab Bulledi Advocate.....Private Member PRC**

APPEAL UNDER RULE-56-A OF THE BPP RULES – TSE No. 242504686513

For the Appellant:

Malik Naseer Ud Din Kakar

Hearing Dated: 30-07-2025

Decided on: 04-08-2025

DECISION

The Appellant, by leave of this Committee has challenged the impugned act of assigning less marks to the Appellant during the technical evaluation of bids by the Respondent No. 2.

2. Brief facts of the case are that the Appellant in capacity of a bidder participated in the electronic Tender titled "Solarization of Existing and New Tube Wells in PB-44 Quetta V-II" with estimated approved budget of PKR. 198,109,952/- advertised vide TSE No. 242504686513 on the BPPRA ePPS by the Respondent No. 2, adopting Single Stage Two Envelope Bidding procedure. The evaluation criterion was least-cost selection method, and the

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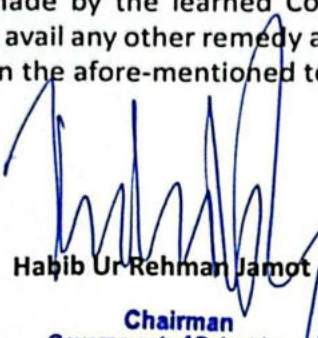
TSE-242504686513

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required score for being considered responsive was 75% marks whereas, the Appellant was awarded 68% marks in the technical evaluation.

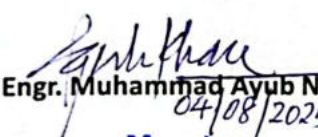
3. This Committee confronted the Appellant with the question of maintainability of the instant appeal as the same Tender has already been decided upon, by this Committee vide its decision against Appeal No. 02/2025 and has declared the case to be of mis-procurement, and the Procuring Agency has already been directed for re-issuance of the said Tender. Consequently, the learned Counsel for the Appellant requested for withdrawal of the appeal.

4. The request so made by the learned Counsel is allowed. However, the Appellant would be at liberty to avail any other remedy available to him according to law. The Appeal is disposed based on the afore-mentioned terms.


Habib Ur Rehman Jamot
Chairman
Government of Balochistan
Public Procurement Review Committee
(B-PPRA)


Mubashir Ali Khan (FCIPS)
Member
Procurement Review Committee
BPPRA


Engr. Junaaid Shah
Member
Procurement Review Committee
BPPRA


Engr. Muhammad Ayub Nasir
Member
Procurement Review Committee
BPPRA


Abdul Wahab Buledi, Advocate
Member
Procurement Review Committee
BPPRA